

Calendar Line 2

Case Name: *Pamela Wingerden v. Nestldown Therapeutic Riding Center*

Case No.: 23CV422178

Plaintiff Pamela Wingerden moves to quash several subpoenas issued by defendant Nestldown Therapeutic Riding Center (“Nestldown”) to her medical providers. In the alternative, she requests a protective order. Wingerden argues that the subpoenas are overbroad, because they are not limited to the specific body parts that she identified as having been injured in a September 8, 2021 accident at a horse ranch owned by Nestldown, where she used to work. In addition, she argues that the subpoenas are overbroad as to time, seeking “decades of medical records.” (Memorandum, p. 7:15-16.)

The court denies the motion to the extent that it seeks to limit the subpoenas to specific body parts. In her response to Form Interrogatory No. 6.2, Wingerden identified the following injuries: “I suffered . . . L3/L4 transverse process fractures, closed head injury, post-concussion syndrome, benign paroxysmal positional vertigo (BPPV), cervical pain, thoracic pain, headaches, right shoulder pain and left hip pain. I had a hematoma on my inner right thigh. My cognitive functioning and memory recall.” (Declaration of Paulo S. Kline Simon, Exhibit 1, p. 7.) In other words, she identified injuries to her head, shoulder, hip, chest, thigh, and vertebrae/spine. Having put all of these disparate injuries at issue in the case, it is unreasonable for Wingerden to claim that her right of privacy precludes discovery into medical records that could potentially be related to one of these claimed injuries. The present circumstances are nothing like the circumstances at issue in *Hallendorf v. Superior Court* (1978) 85 Cal.App.3d 553, a case upon which she relies, where the plaintiff claimed injuries only to his arm and shoulder, and then the defendant tried to obtain discovery about plaintiff’s entire medical history, including records that were expressly unrelated to the accident at issue (e.g., plaintiff’s history of hypertension). Here, although the court would not go so far as Nestldown to say that Wingerden’s injuries were to her “entire body,” the court finds that her injuries and symptoms (e.g., loss of “cognitive functioning and memory”) are so wide-ranging that the scope of the subpoenas cannot reasonably be limited without further explanation here from Wingerden about her claimed privacy interest—an explanation that she fails to provide.

As for the timeframe of the subpoenas, however, the court agrees with Wingerden that an unlimited duration—especially if it goes back “decades”—is overbroad. Nestldown argues that Wingerden’s medical history before the accident is necessary to determine the extent to which pre-existing medical issues, as opposed to the September 8, 2021 accident itself, may be the cause of her current symptoms. While this proposition may be reasonable as a general concept, it still does not counsel in favor of discovery of an entire medical history. Accordingly, the court finds that it would be reasonable to obtain medical records that may exist *up to two years before* the date of the accident. Anything more than that would require a heightened showing from Nestldown at a later time, based on the information initially obtained either in response to these subpoenas or in the course of discovery in this case.

In short, the court GRANTS the motion IN PART, limiting the timeframe of any document production from September 2019 to the present, and DENIES the motion IN PART (in all other respects).

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Calendar Lines 3-4

Case Name: *Debra Ryan et al. v. AAA et al.*

Case No.: 23CV427933

The present motions were originally calendared for a hearing on January 7, 2025. On the eve of that date, after the court had already posted a tentative ruling on these motions, the parties submitted a stipulation to continue the hearing, indicating that they were continuing to meet and confer in an effort to “narrow” or “eliminate” their disputes. The court therefore rescheduled the hearing to February 27, 2025, noting that if plaintiffs ultimately elected to take the motions off calendar, “they should notify the court at least three court days before the rescheduled hearing date.” (January 6, 2025 Order, p. 3.) The court has not received any update from the parties, as of February 25, 2025. Accordingly, the court hereby adopts in full its previous tentative ruling, which stated the following:

Plaintiffs Debra and Richard Ryan (“Plaintiffs”) have filed two motions to compel further discovery responses from defendant CSAA Insurance Exchange (“CSAA”): the first pertains to requests for production of documents; the second pertains to special interrogatories. After Plaintiffs filed this motion, CSAA supplemented its responses to both sets of requests, but neither side has addressed these supplemental responses in their separate statements under rule 3.1345 of the California Rules of Court. On this basis alone, the motions must be denied.

The separate statement is not a mere technicality—its purpose is to “provide[] all the information necessary to understand each discovery request and all the responses to it that are at issue.” (Cal. Rules of Court, rule 3.1345(c).) Rule 3.1345(c) goes on to emphasize that: “[t]he separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” If Plaintiffs wished to have the court consider the propriety of CSAA’s supplemental discovery responses, it was incumbent on them to submit a supplemental separate statement that provides a “full and complete” record of the disputed issues. Plaintiffs’ filings fail this basic requirement.⁹

If this motion were focused on just a few requests, then it might be possible for the court to overlook this problem, but instead, plaintiffs have filed scattershot motions that take issue with the responses to all 20 of its document requests and 10 out of 11 of its special interrogatories. This is not a proper use of motion practice.

Finally, even if the court were to consider the motions on the merits, the court has reviewed the supplemental discovery responses (attached to the two opposing declarations of CSAA’s counsel) and finds that they are generally code compliant:

⁹ In reply, Plaintiffs’ counsel has submitted a declaration that purports to attach updated information (see Supplemental Declaration of Heather Gibson, dated December 30, 2024), but no documents are actually attached to this filing. None of the cited exhibits are before the court.